

25TRCV01051 25TRCV01051

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Case Number: 25TRCV01051 Hearing Date: September 22, 2026 Dept: P

Motion to Determine and Adopt Appraised Value

Moving Party: Plaintiff Homeira Goldstein, Trustee of the Arnold and Homeira Goldstein Family Trust dated February 17, 2023

Responding Party: None

RULING

The court considered the moving papers. Plaintiff's Motion to Determine and Adopt Appraised Value is GRANTED. The court adopts the appraised value of \$2,200,000.00 for the Subject Property.

PROCEDURAL BACKGROUND

On April 2, 2025, Plaintiffs the Arnold and Homeira Goldstein Family Trust dated February 17, 2023 and Homeira Goldstein filed a complaint against Defendants Lawrence M. Wolf, Jocelyn Wolf, Dennis May, Etta May, the Wolf Family Trust dated September 10, 1990, the May Family Trust dated January 19, 1978, and all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest to the Subject Property adverse to Plaintiffs' title, or any cloud on Plaintiff's title thereto, and DOES 1 through 50, inclusive, alleging three causes of action for: (1) Partition by Sale; (2) Accounting; and (3) Declaratory Relief.

On July 3, 2025, Plaintiff Homeira Goldstein, as Trustee of the Arnold and Homeira Goldstein Family Trust dated February 17, 2023 ("Plaintiff") filed a first amended complaint ("FAC") against Defendants Lawrence M. Wolf as Co-Trustee of the Wolf Family Trust dated September 10, 1990, Jocelyn Wolf as Co-Trustee of the Wolf Family Trust dated September 10, 1990, Dennis May as Co-Trustee of the May Family Trust dated January 19, 1978, Etta May as Co-Trustee of the May Family Trust dated January 19, 1978, and all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest to the Subject Property adverse to Plaintiffs' title, or any cloud on Plaintiff's title thereto, and DOES 1 through 50, inclusive (collectively, "Defendants"), alleging the same three causes of action.

On October 9, 2025, Plaintiff filed a second amended complaint ("SAC") against Defendants, alleging two causes of action for: (1) Partition by Sale; and (2) Accounting.

On December 16, 2025, Defendants and Cross-Complainants Lawrence M. Wolf and Jocelyn Wolf as Co-Trustees of the Wolf Family Trust dated September 10, 1990 filed a cross-complaint against Cross-Defendants Homeira Goldstein as Trustee of the Arnold and Homeira Goldstein Family Trust dated February 17, 2023, Dennis May as Co-Trustee of the May Family Trust dated January 19, 1978, Etta May as Co-Trustee of the May Family Trust dated January 19, 1978, and ROES 1 through 25, inclusive, alleging two causes of action for: (1) Accounting; and (2) Negligence.

On January 28, 2026, the court appointed Guy Brydon as appraiser, pursuant to the parties' stipulation.

On May 5, 2026, Plaintiff filed a Notice of Filing Verified Appraisal.

On June 10, 2026, Plaintiff filed the instant motion.

FACTUAL BACKGROUND

Plaintiff alleges that as Trustee of the Arnold and Homeira Goldstein Family Trust dated February 17, 2023, she holds a 33% undivided interest in the real property located at 356 27th Street in Hermosa Beach, California (the "Subject Property"). (SAC, ¶¶ 8, 14.) Plaintiff alleges that Defendants Dennis May and Etta May, as Co-Trustees of the May Family Trust dated January 19, 1978, hold a separate 33% undivided interest in the Subject Property. (SAC, ¶ 14.) Plaintiff next alleges that Defendants Jocelyn Wolf and Lawrence M. Wolf, as Co-Trustees of the Wolf Family Trust dated September 10, 1990, hold the remaining 33% undivided interest in the Subject Property. (SAC, ¶ 14.) Plaintiff alleges that a physical partition is not feasible and would "dramatically reduce the Subject Property's value, thereby prejudicing the parties." (SAC, ¶¶ 16-17.) Plaintiff alleges that Defendants Lawrence M. Wolf and Jocelyn Wolf, as co-trustees, have refused to agree to sell the Subject Property, and thus Plaintiff seeks partition by sale. (SAC, ¶ 18.)

LEGAL STANDARD

"Except as otherwise provided in subdivisions (b) and (c), the court shall determine the fair market value of the property by ordering an appraisal pursuant to subdivision (d)." (Code Civ. Proc. Section 874.316(a).) "If the court orders an appraisal, the court shall appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court." (Code Civ. Proc. Section 874.316(d).)

"If an appraisal is filed with the court pursuant to subdivision (d), the court shall conduct a hearing to determine the fair market value of the property not sooner than 30 days after a copy of the notice of the appraisal is sent to each party under subdivision (e), whether or not an objection to the appraisal is filed under paragraph (3) of subdivision (e). In addition to the court-ordered appraisal, the court may consider any other evidence of value offered by a party." (Code Civ. Proc. Section 874.316(f).) "After a hearing under subdivision (f), but before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value." (Code Civ. Proc. Section 874.316(g).)

DISCUSSION

Moving Party's Argument

Plaintiff requests that the court adopt the appraised value of \$2,200,000.00 for the Subject Property, as determined by the court-appointed appraiser. Plaintiff argues that the May Family Trust is entitled to purchase Plaintiff's interest in the Subject Property because the statutory conditions of the Partition of Real Property Act have been met, as Plaintiff requested partition by sale, Defendants did not, and thus Defendants may elect to buy out Plaintiff's interest after the court determines the Subject Property's fair market value.

Merits of the Motion

Plaintiff requests that the court determine the fair market value of the Subject Property to be \$2,200,000.00 pursuant to Code of Civil Procedure Section 874.316.

Here, Plaintiff's counsel declares that Guy Brydon ("Brydon"), a certified general real estate appraiser with the state of California conducted the appraisal of the Subject Property after being appointed by the court on January 28, 2026. (Shetty Decl., ¶ 3.) A copy of Plaintiff's Notice of Filing Verified Appraisal which includes the declaration of Brydon and his appraisal valuing the Subject Property at \$2,200,000.00 is attached to Plaintiff's counsel's declaration as Exhibit 1. (Shetty Decl., ¶ 2; Exh. 1.)

Plaintiff's counsel further declares that as reflected by an April 29, 2026 email from counsel for the Wolf Family Trust, the Wolf Family Trust has "stated its willingness to sell the Property rather than purchase Plaintiff's interest," and thus "only the May Family Trust remains as an eligible purchaser under Code of Civil Procedure § 874.317." (Shetty Decl., ¶ 22; Exh. 6.)

The court finds that the statutory requirements of Code of Civil Procedure Section 874.316 have been satisfied, as the court appointed Brydon to determine the fair market value of the Subject Property, and Plaintiff has filed a Notice of Filing Verified Appraisal containing Brydon's appraisal report and declaration. (Shetty Decl., Exh. 1.)

The court has reviewed Brydon's appraisal report and finds the appraisal to be proper on its face, and the court notes that no opposition has been filed.

Because the statutory requirements have been met and the instant motion is unopposed, Plaintiff's Motion to Determine and Adopt Appraised Value is GRANTED. The court adopts the appraised value of \$2,200,000.00 for the Subject Property.

CONCLUSION

Based on the foregoing, Plaintiff's Motion to Determine and Adopt Appraised Value is GRANTED. The court adopts the appraised value of \$2,200,000.00 for the Subject Property.

Moving party is ordered to give notice of ruling.